

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUBC039994: CHRISTOPH THART vs GENERAL MOTORS LLC, A DELAWARE
LIMITED LIABILITY COMPANY**

09/23/2026 in Department 44

Motion for Attorney Fees/Costs and Costs Under Settlement Agreement

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff Christoph Thart's Motion for Attorney's Fees and Costs

Tentative Ruling: Plaintiff's Motion for Attorney's Fees and Costs is GRANTED. Defendant concedes that plaintiff is entitled to reasonable fees and costs actually incurred in the prosecution of this lemon law action but disputes the hourly rates requested. The Court finds that the number of hours expended, 30.8 at a blended rate of \$475 per hour for the three attorneys who billed to the case and amounting to \$14,630 is reasonable. Plaintiff's request for a .2 lodestar multiplier is DENIED. The Court further awards Plaintiff \$2,641.91 in costs and expenses incurred pursuant to Civil Code section 1794(d). The total award is \$17,271.91.

Plaintiff to give notice.